
OVERVIEW

Approved absences from foster care placement are necessary to support the well-being of the child and caregiver. Approved absences from foster care placement also assist with ensuring a child's best interest and timely permanence. Case managers must follow the timeframes and requirements regarding a child's absence from placement in this policy. When it is necessary to have absences there is no change in placement required in the electronic case management system.

APPROVED ABSENCES FROM PLACEMENT

The following are reasons a child may be approved for an absence from placement:

Substitute care is short term care and supervision for a foster child in the absence of the caregiver. Substitute care is driven by the caregiver's need for substitute care. The substitute caregiver does not need to be licensed. If the substitute caregiver is licensed, a capacity change does not need to occur.

Parenting time is visits between a child and the child's parents to support reunification and preserve attachment. When reunification is the goal, the parenting time plan should include progressively increased parental contact.

Sibling visits are visits between a child and the child's siblings to support reunification and preserve attachment. Siblings in foster care who are not placed together must have regular visitation.

Pre-adoptive visits are approved visits between a child and a prospective adoptive family to support the transition to the adoptive home. The pre-adoptive family must have an approved adoptive family assessment and does not have to be a licensed caregiver.

Prudent parent absences from the placement are child centered activities that promote normalcy for children. These activities do not have to be with a licensed caregiver. If the child is staying with a licensed caregiver, a capacity change does not need to occur.

Respite care is short term care and supervision of a child who is an abuse and/or neglect ward, including dual wards, and juvenile justice wards in any of the following placements: licensed foster home, relative caregiver home, adoptive home, legal parents or

guardians, and court ordered placements. Children who are a part of the Serious Emotional Disturbances Waiver (SEDW) and were referred by Community Mental Health (CMH), whether they are placed in foster care or not, qualify for respite. Respite is available to provide temporary and occasional relief to the child and the child's current placement caregiver, parent, or legal guardian to maintain the ability to meet the needs of the child and to support the well-being of the current placement caregiver. Caring for the needs of children who have experienced the trauma of neglect and/or abuse requires intensive time, effort, and skill. Respite services can be provided by licensed or unlicensed providers; see [SRM 109, Respite Services and Engagement](#).

An approved absence from placement cannot override or interfere with the child's case plan or court-ordered requirements.

Example: Court- ordered requirements such as parenting time and sibling visits.

Notification

Caregiver

The caregiver must notify the case manager prior to the absence anytime a child will be away from their placement for three or more days. The case manager is to inform the child's Lawyer Guardian Ad Litem (LGAL) and parents (for temporary wards) of planned absences.

For absences requiring substitute care for 24 hours or more, caregivers in licensed foster homes must provide notice to the agency before any planned overnight substitute care and/or within 24 hours of any unplanned absence requiring substitute care (R400.12319).

Legal Parent

The case manager is to give notice to all legal parents for absences exceeding three days. This may be a written notice or notice by phone, which must then be entered into a social work contact in the electronic case record.

Exception: Family visitation that is otherwise documented in the current visitation plan.

**Approval Path for
Absences from
Placement*****Absences for three to five days:***

- Do not require further approval beyond the case manager.
- The placement must be considered intact by the caregiver and return to the placement is planned.
- The placement caregiver agrees to remain involved with the child and/or the child's family during the absence.
- Payments may continue as long as the placement is maintained for the child and a return to the placement is planned.
- Do not change the child's placement in the electronic case record.

Absences for six to 14 days:

- Foster care supervisor approval is required and must be documented in a social work contact in the electronic case record.
- The placement must be considered intact by the caregiver and return to the placement is planned.
- The placement caregiver agrees to remain involved with the child and/or the child's family during the absence.
- Payments may continue as long as the placement is maintained for the child and a return to the placement is planned.
- Do not change the child's placement in the electronic case record.

Absences for 15 consecutive days or more:

- County director or designee must approve the absence for both Michigan Department of Health and Human Services (MDHHS) and private agency supervised cases.

- The case manager must write a memo to the county director or designee and include the following information:
 - The reason for the absence from placement.
 - The location where the child will be staying.
 - The person who will be responsible for the child while the child is away from the placement.
 - The case manager has confirmed with the caregiver they are willing to accept the child back following the absence.
 - The caregiver's willingness to continue involvement with the child during the absence.
 - The planned begin and end date of the absence.
 - The child's fund source.

Note: If the child's fund source is not title IV-E, the county director/designee may approve payment of the age-appropriate rate and the Placement Agency Foster Care (PAFC) general foster care administrative rate, if appropriate.

TEMPORARY BREAKS

The following are considered temporary breaks from placement and a new placement must be entered into the electronic case record:

- Absent without Legal Permission (AWOLP).
- Detention.
- Jail.
- Medical Hospitalization.
- Psychiatric Hospitalization.

See [FOM 903-07, Temporary Breaks/Bed Hold Payments](#) for more information.

Documentation

The case manager must document the approved absence in a social work contact in the electronic case management system. The documentation must include the following:

- Begin and end dates of the absence.
- The individual who approved the absence and the date the absence was approved; see *Approval Path* in this item.
- The name, address, and contact information of the individual(s) with whom the child will be staying with during the absence.

Note: The name, address, and contact information of the individual(s) with whom the child will be staying with may be documented in the Additional Narrative section of the social work contact if there are safety or privacy concerns related to the information being contained in the case service plan.

LEGAL AUTHORITY

State Laws

Child Care Organizations Act, 1973 PA 116, as amended, MCL 722.111 et seq.

Foster family home and foster family group home; is care and supervision that is provided 24 hours a day, for four or more days a week, for two or more consecutive weeks.

Licensing Rule

Mich Admin Code, R400.12319

An agency's substitute care policy must support substitute caregivers and childcare licensing rules.

POLICY CONTACT

Questions about this policy item may be directed to [the Child Welfare Policy Mailbox \(Child-Welfare-Policy@michigan.gov\)](mailto:Child-Welfare-Policy@michigan.gov).